

MATTHEE v AFROCENTRIC INVESTMENT CORPORATION LIMITED / MEDSCHEME HOLDINGS

MASTER FORENSIC GOVERNANCE & REGULATORY REGISTER

Prepared by EthicHawks Forensic Governance Consultancy | 03 April 2026 | Confidential

Cases: HCGS951842 | 2026-066952 | 2026-077546 | WECT23564-25 | WECT24486-25 | B-BBEE Comm 5/02/2026 | SAPS CAS 705/3/2026

TABLE 1: MASTER CHRONOLOGICAL REGISTER (11 January 2024 → 02 April 2026)

This table is the definitive chronological record of every material event across the full matter — from recruitment through employment, resignation, regulatory escalation, and active court proceedings. It spans 148 entries across four phases: (1) Recruitment Phase (Jan–Apr 2024); (2) Employment & Deterioration (May 2024–Nov 2025); (3) Regulatory Escalation (Dec 2025–Feb 2026); and (4) Litigation & Administrative (Mar–Apr 2026). Entries are colour-coded by status: GREEN = resolved/complete; AMBER = pending/in progress; RED = failed/ignored/blocked.

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
11 Jan 2024 15:47	Internal – AfroCentric/Medscheme	Interview invitation for Specialist: Care Manager role at Medscheme.	Neo Sekgoka invites Matthee to interview on 15 Jan 2024 with Nthabiseng Nkatane.	Complete	Not applicable – recruitment.	Neo Sekgoka, Nthabiseng Nkatane, Gretchen Veldtman
12 Jan 2024 08:06	Internal – AfroCentric/Medscheme	Second interview invitation for Specialist: Care Manager role (reminder).	Duplicate/reminder email.	Complete	Not applicable.	Neo Sekgoka, Nthabiseng Nkatane, Gretchen Veldtman
15 Jan 2024 12:49	Internal – AfroCentric/Medscheme	Third interview invitation – rescheduled to 18 Jan 2024 at 11:00.	Matthee confirms attendance.	Complete	Not applicable.	Neo Sekgoka, Nthabiseng Nkatane, Gretchen Veldtman
29 Jan 2024 08:36	Internal – AfroCentric/Medscheme	Assessment for Specialist Care Manager position – instructions and link sent.	Matthee completes assessment.	Complete	Not applicable.	Neo Sekgoka, W. Matthee
30 Jan 2024 13:12	Internal – AfroCentric/Medscheme	Request for MIE consent form for fingerprint/background check.	Matthee submits consent form.	Complete	Not applicable.	Neo Sekgoka, W. Matthee
21 Feb 2024 09:00	Internal – MIE/AfroCentric	Fingerprint criminal check booking for pre-employment screening.	Reminder emails sent; Matthee attends.	Complete	Not applicable – standard pre-employment.	MIE, Lerato Maimane, W. Matthee
02 Apr 2024 07:53	Internal – Medscheme	BAIT AND SWITCH: Recruited for 'Specialist: Care Manager' but offered 'Care Coordinator'	Matthee accepts offer; Nthabiseng Nkatane confirms start date 1 May 2024.	Complete	KEY EVIDENCE: Title suppression – recruited for Specialist,	Nthabiseng Nkatane, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
		position. Employer downgraded role at signing.			appointed as Coordinator.	
02 Apr 2024 09:10	Internal – Medscheme	Request for dummy payslip and benefits discussion.	Lerato Maimane sends dummy payslip; Mpho Orleyn sends CTC payslip.	Complete	Not applicable.	Nthabiseng Nkatane, Lerato Maimane, Mpho Orleyn
09 Apr 2024	Internal – AfroCentric	Employment contract signed: position 'Care Coordinator' (grade B4M1), CTC R490,032 per annum. Bait-and-switch confirmed: recruited as Specialist but contracted as Coordinator.	Matthee signs contract.	Complete	KEY EVIDENCE: Title suppression confirmed in writing.	Barbara Johnson, W. Matthee
16 Apr 2024	Internal – AfroCentric	Pre-onboarding meeting invitation (benefits presentation).	Matthee unable to attend; requests recording.	Complete	Not applicable.	Asanda Ngewu, Sebatso Sebotsa, W. Matthee
18 Apr 2024	Internal – Medscheme	Start date (1 May 2024) query: arrival time and dress code.	Nkatane confirms: smart casual, start 2 May (1 May public holiday).	Complete	Not applicable.	Nthabiseng Nkatane, W. Matthee
22 Apr 2024	Internal – Medscheme	Recall of appointment confirmation email (administrative error).	Mpho Orleyn recalls incorrect letter; corrected letter issued.	Complete	Not applicable.	Mpho Orleyn, Nthabiseng Nkatane, W. Matthee
06 Mar 2025	Internal – Medscheme	FIRST DOCUMENTED THREAT: Mary-Ann Jones threatens Matthee: 'this is the end of you'.	Matthee documents threat.	Complete	Direct intimidation – early pattern of hostility by Jones.	Mary-Ann Jones, W. Matthee
17 Mar 2025	Medical – Akeso Stepping Stones	Matthee seeks admission for mental health treatment (major depression, GAD).	Keziah Quimpo processes admission for 18 March 2025.	Complete	Not applicable – medical event.	Keziah Quimpo, W. Matthee
18 Mar 2025	Medical – Akeso Stepping Stones	Admission for inpatient treatment (severe depression, PTSD); 3–4 weeks.	Admitted to Akeso Stepping Stones Clinic.	Complete	Not applicable – medical event.	Dr Jacques Malan, W. Matthee
01 Apr 2025	Internal – AfroCentric	Annual salary increase of 4.8% effective 1 April 2025. New CTC: R42,796.13/month.	CEO Gerald Van Wyk confirms increase.	Complete	Not applicable.	Gerald Van Wyk, W. Matthee
01 Apr 2025	Medical – Dr Jacques Malan	Sick note issued: unfit for work from 18 March 2025; admitted for 3–4 weeks inpatient treatment.	Dr Malan certifies medical condition (confidential).	Complete	Not applicable – medical documentation.	Dr Jacques Malan, W. Matthee
16 Apr 2025 12:59	Internal – Medscheme	Jones states in meeting: 'we do not apply staggering of money owed' – critical evidence used to justify later unlawful deduction.	Matthee given accommodations (LACE cases, reduced hours, 3 hours for doctor visits).	Complete	Employer's written position on staggering – contradicts own policy.	Mary-Ann Jones, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
22 Apr 2025	Internal – Medscheme	Matthee informs Jones about SANC CPD requirements (Regulation 1569) and upskilling content approval.	No immediate response documented.	Complete	Not applicable – professional development.	Mary-Ann Jones, W. Matthee
07 May 2025 15:23	Internal – Medscheme	Matthee requests staggering of unpaid leave deduction; Jones declines.	Jones insists on half-day unpaid leave.	Complete	Precursor to July 2025 unlawful deduction.	Mary-Ann Jones, W. Matthee
16 May 2025 12:37	Internal – Medscheme	Matthee provides Dr Malan's psychiatric letter to Mapule Mashele – disclosure of severe depression and PTSD.	Mashele receives disclosure.	Complete	Employer placed on notice of disability.	Mapule Mashele, Dr Jacques Malan, W. Matthee
20 May 2025 09:18	Internal – Medscheme	Matthee suffers medical crisis, requests to leave for medication.	Jones allows leave but later logs unpaid leave.	Complete	No reasonable accommodation during medical crisis.	Mary-Ann Jones, W. Matthee
21 May 2025 09:31	Internal – Medscheme	Jones instructs Matthee to load unpaid leave for 20 May 2025 medical emergency.	Unpaid leave applied.	Complete	Punitive response to medical emergency.	Mary-Ann Jones, W. Matthee
03 Jun 2025 12:30	Internal – Medscheme	First documented tension: Matthee questions duplicate LACE case allocations.	Jones: 'Why mention it... I would appreciate if you afford me my peace.'	Complete	Early workplace friction – defensive hostile response.	Mary-Ann Jones, W. Matthee
24 Jun 2025 16:44	Internal – Medscheme	Jones documents 67 days absence in 13 months; notes unpaid leave and pending special leave.	Absence management review conducted.	Complete	Not applicable – administrative record.	Mary-Ann Jones, W. Matthee
14 Jul 2025 13:27	Internal – Medscheme	Special leave approved for 10 days; remainder of absence as unpaid leave.	Jones confirms special leave approved.	Complete	Not applicable.	Mary-Ann Jones, W. Matthee
23 Jul 2025	Internal – Medscheme	UNLAWFUL SALARY DEDUCTION: 40.47% (R14,811.77) deducted without consultation while between psychiatric admissions. Net pay R15,679.29.	Employer invokes 'no work no pay'; manager states company 'does not allow staggering' and Matthee 'wouldn't feel the deduction' due to online deliveries.	Complete	EXCEEDED BCEA s34(2) 25% cap. No consultation. Employer held Dr Malan's letter confirming medical necessity.	Cheryl-Dawn Modern, Mapule Mashele, Mary-Ann Jones, W. Matthee
24 Jul 2025 10:35	Internal – Medscheme	Jones shares AOD policy: 'monthly deductions must not be more than 25% of employee's CTC as per legislation.'	Matthee: 'they are allowed to deduct more than 50%?' Jones: 'This is for disability.'	Complete	CRITICAL: Employer acknowledged 25% cap but deducted 40.47%. Evidence of wilful non-compliance.	Mary-Ann Jones, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
24 Jul 2025 12:46	Internal – Medscheme	Jones asks 'what is illegal?' after Matthee points out BCEA violation.	No substantive answer.	Complete	Feigned ignorance of statutory cap.	Mary-Ann Jones, W. Matthee
25 Jul 2025	Internal – Medscheme	Matthee drafts and implements First Aider roster for 2nd, 3rd, 4th floors – evidence of operational management responsibility.	Roster distributed; Matthee instructs team leaders.	Complete	DIRECT EVIDENCE of management role – contradicts 'Care Coordinator' designation.	W. Matthee, First Aid Team
13 Aug 2025 14:53	Internal – Medscheme	Matthee leaves work due to health emergency; colleague assists.	Jones later requires time to be worked back.	Complete	No reasonable accommodation during medical crisis.	Shantal Govender, Mary-Ann Jones, W. Matthee
23 Sep 2025	Internal – Medscheme	GENDER IDENTITY DISCRIMINATION: Jones posts 'Wilma' (feminised name) in Teams channel with 'NO FILTERING' in red, immediately after Matthee proposed a filtering strategy.	Matthee lodges formal complaint. HR promises not to require meeting with Jones but NO FORMAL REMOVAL from Jones's team occurs.	Complete	Discrimination incident – HR failed to remove Matthee from hostile manager.	Mary-Ann Jones, Cheryl-Dawn Modern, Sipokazi Makaula, Thando Mandoondo (Union), W. Matthee
25 Sep 2025	Internal – HR	Formal complaint of sexual orientation discrimination and harassment submitted (11 pages). Requests neutral investigator, suspension of accused, removal from Jones's team.	Cheryl-Dawn Modern: 'You will not be required to meet with the manager.' Escalated to Mashele. However Matthee NOT removed from Jones's team.	Complete	HR promised protection but failed to remove Matthee from hostile manager.	Cheryl-Dawn Modern, Mapule Mashele, Sipokazi Makaula, Thando Mandoondo, W. Matthee
29 Sep 2025 12:27	Internal – Medscheme	RETALIATORY UNPAID LEAVE: Jones loads double punitive unpaid leave entry on exact same day Matthee files formal discrimination complaint.	Mapule Mashele reverses the entry on 1 Oct 2025.	Complete	RETALIATORY CONDUCT – documented and reversed. Written evidence of discretionary punitive action.	Mary-Ann Jones, Mapule Mashele, W. Matthee
01 Oct 2025 11:09	Internal – Investigation	Matthee provides formal update after meeting with Mashele; acknowledges shared understanding of seriousness.	Matthee agrees to speak directly with Jones in Mashele's presence.	Complete	Not applicable – cooperation with investigation.	Mapule Mashele, Mary-Ann Jones, W. Matthee
01 Oct 2025 13:28	Internal – Investigation	Mashele closes discrimination complaint: Jones's 'Wilma' was a 'typo'; apology accepted; matter closed. Matthee remains in Jones's reporting line.	Mashele issues closure report.	Complete	WHITEWASH – serious complaint dismissed as 'typo'. May 2025 disclosure of Jones's conduct ignored. Matthee not removed.	Mapule Mashele, Mary-Ann Jones, Cheryl-Dawn Modern, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
08 Oct 2025	Internal – Medscheme	Matthee volunteers for pilot hybrid working arrangement.	Jones asks clarifying questions about dates.	Complete	Not applicable.	Mary-Ann Jones, W. Matthee
23 Oct 2025 12:02	Internal – Medscheme	Jones instructs Matthee to call member with 'gentle probing' about non-adherence despite known system integration error.	Matthee later refuses.	Complete	Directive to perform clinically incorrect action on vulnerable patient.	Mary-Ann Jones, W. Matthee
23 Oct 2025 12:40	Internal – Medscheme	PROTECTED DISCLOSURE (Patient Safety): Matthee discloses Gexus-DMS system integration gap causing false non-adherence letters to GEMS members. States: 'Given that the integration gap still exists, I will not contact the member at this time.'	Jones: 'The below is noted. I am not in agreement with your feedback though.' Matthee excluded from resolution process.	Complete	Disclosure rejected; insubordination framing begins. PDA-protected disclosure met with dismissal.	Mary-Ann Jones, Lisa Mari (cc'd), W. Matthee
23 Oct 2025 12:54	Internal – Medscheme	Jones: 'I am not in agreement with your feedback though.' Matthee's clinical assessment overridden.	Clinical judgment dismissed without clinical basis.	Complete	Professional judgment dismissed.	Mary-Ann Jones, W. Matthee
23 Oct 2025 15:21	Internal – Medscheme	Matthee concedes under employer pressure: 'I realize that I should have contacted the member... I hope this instance of poor communication does not influence future requests.'	Jones acknowledges forced apology.	Complete	Constructive acquiescence – forced apology for raising patient safety concern.	Mary-Ann Jones, W. Matthee
31 Oct 2025	Internal – Medscheme	RECORDED RETALIATORY ADMISSION: Jones states: 'You made a case of harassment against me, so I can make a case of harassment against you. You misspelled my name in an email – go look.' Also warns: 'think of the ripple effect' of his actions.	Matthee records the interaction.	Complete	SMOKING GUN: Direct evidence of PDA breach, retaliatory intent, and veiled threat.	Mary-Ann Jones, W. Matthee
02 Nov 2025	Internal – HR/Union	Formal 3-page grievance against Jones: malicious intent, gaslighting, weaponising past issues, orchestrated provocation, campaign for removal, retaliation. Demands investigation, removal from team, written guarantee against retaliation.	No response documented.	Pending	30+ DAYS INSTITUTIONAL SILENCE BEGINS.	Cheryl-Dawn Modern, Sipokazi Makaula, Thando Mandondo, Tebogo Dikobe, W. Matthee
02 Nov 2025 22:55	Internal – HR	Request for review of July 2025 salary deduction – lack of written consent, staggering refused,	No response documented.	Pending	Ignored – part of institutional silence.	Cheryl-Dawn Modern, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
		manager's inappropriate comment about online deliveries.				
11 Nov 2025 17:15	Internal – HR	Matthee formally disputes July 2025 deduction; reports manager's statements about staggering.	Cheryl-Dawn Modern acknowledges and requests time to look into matter.	Pending	Acknowledged but no resolution.	Cheryl-Dawn Modern, W. Matthee
20 Nov 2025	Internal – Medscheme	Time in lieu request for year-end functions.	Jones declines citing departmental adherence policy.	Complete	Selective policy application.	Mary-Ann Jones, W. Matthee
03 Dec 2025 17:26	Internal – Medscheme	Jones issues directive: no overtime, calls ≤30 minutes, work outside hours 'for your own account'.	Matthee challenges selective application of policies.	Complete	Selective enforcement; unreasonable restrictions.	Mary-Ann Jones, W. Matthee
04 Dec 2025 12:29	Executive Leadership – Medscheme/AfroCentric	Final internal escalation (32 attachments): unlawful deduction, intimidation/retaliation, 30+ days silence, performance discrepancies. Requests paid leave, financial settlement, written guarantee.	CRO Monwabisi Kula (09 Dec): acknowledges; feedback only in January due to 'festive break'.	Pending	DELAY TACTIC – 'festive break' response to urgent humanitarian crisis.	Gerald Van Wyk, Lindiwe Miyambu, Monwabisi Kula, Andrew Schwulst, Aklaaq Mahmood, W. Matthee
05 Dec 2025	CCMA	First CCMA referral (WECT23564-25) – Unfair Labour Practice (unlawful salary deduction, discrimination, victimisation).	Case scheduled for Con/Arb on 9 Jan 2026.	Scheduled	Not applicable.	W. Matthee, CCMA
05 Dec 2025 16:42	Internal – Medscheme	Matthee requests meeting conditions: recording, agenda, written responses. Bongani Luvuno claims only recently made aware.	Luvuno proposes engagement on 10 December.	Pending	Procedural delay – executive claims ignorance despite 30+ days silence.	Bongani Luvuno, Mapule Mashele, Gretchen Veldtman, W. Matthee
09 Dec 2025	Board of Directors – AfroCentric	Board escalation (38 attachments): discrimination, retaliation, unlawful deduction, 30+ days silence, King IV breaches. Requests independent investigation, manager suspension, board settlement.	Emails to Shadi Chauke and Lebohang Mpumlwana (typo) fail – invalid addresses.	Partial failure	Technical deflection – invalid email addresses for key directors.	Nkateko Munisi, Alice le Roux, Bruno Fernandes, Shadi Chauke (invalid), Lebohang Mpumlwana, W. Matthee
09 Dec 2025	Chief Risk Officer – Monwabisi Kula	Urgent plea: paid special leave, removal from manager's line, hardship payment.	Kula: asks for patience; 48-hour deadline unreasonable; acknowledges matter; commits to feedback 'in reasonable time'.	In progress	Delay tactic – 'takes time'/other critical things'.	Monwabisi Kula, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
10 Dec 2025	CCMA	Employer (Xolile Manyati/Medscheme legal) files Opposing Affidavit in WECT23564-25, characterising diagnosed depression as 'cynical excuse', 'untruthful character', 'sloppiness', 'fishing expedition', 'abuse of system'. Requests dismissal with costs.	Affidavit served on CCMA and Matthee.	Complete	BAD FAITH LITIGATION – personal attacks under oath.	Xolile Manyati (Medscheme legal), W. Matthee
10 Dec 2025	Board/Executives	Matthee formally confirms executive-level resolution exhausted; redirects governance aspects to Board Committees.	No response documented.	Pending	Passed internally – executives to Board Committees.	W. Matthee, Lebohang Mpumlwana
10 Dec 2025	Board/Executives	Urgent update: Opposing Affidavit filed – institutional bad faith, factual misrepresentation, attack on character, request for costs. Acknowledgment requested by 12 Dec 12:00.	No response documented.	Pending	Ignored – no acknowledgment by requested deadline.	Xolile Manyati, Board Chairs, Lebohang Mpumlwana, W. Matthee
11 Dec 2025	Board of Directors – AfroCentric	Formal notice of resignation due to automatically unfair constructive dismissal. Cites opposing affidavit as final intolerable act.	Email to Gretchen.veldman@ fails – address not found.	Complete	Technical deflection – invalid email address.	Board of Directors, Lebohang Mpumlwana, W. Matthee
11 Dec 2025	CCMA	Matthee files Replying Affidavit to employer's opposition.	Email to CMS@ccma.org.za fails – mailbox full (QuotaExceededException).	Failed	Technical deflection – CCMA mailbox full.	W. Matthee, CCMA
12 Dec 2025	Internal – Medscheme	Resignation effective – employment terminated due to intolerable conditions.	Resignation submitted.	Complete	Not applicable – constructive dismissal complete.	W. Matthee
16 Dec 2025	Board Audit & Risk Committee	Maximum Severity GRC Escalation: suppression of findings, retaliation against investigator, King IV/ISO/OHSA/LRA breaches. 24-hour compliance window.	CRO Kula (17 Dec): asks Matthee to stop emailing directors; warns impatience 'does not serve you well'.	Complete	GATEKEEPING – CRO blocks Board-level communication.	Monwabisi Kula, Nkateko Munisi, Alice le Roux, Bruno Fernandes, W. Matthee
17 Dec 2025	Board/Executives	Matthee retracts GRC escalation (sent on public holiday, invalidating timeline). Underlying concerns remain.	No response documented.	Complete	Not applicable – retracted by Matthee.	W. Matthee, Board members
18 Dec 2025	Board of Directors	CRO: 'can I please ask you to stop sending these e-mails to our directors? Sending further e-mails	Matthee declines, asserting right to escalate material risks to oversight committees.	Complete	GATEKEEPING – CRO attempts to suppress	Monwabisi Kula, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
		only gives them an indication of impatience and unreasonableness on your part.'			Board-level governance escalation.	
19 Dec 2025	CCMA	Second CCMA referral (WECT24486-25) – Automatically Unfair Constructive Dismissal (protected disclosure retaliation).	Case scheduled for Con/Arb on 9 Jan 2026.	Scheduled	Not applicable.	W. Matthee, CCMA
22 Dec 2025	Bruno Fernandes – Lead Independent Director	Humanitarian notice: two months arrears on rent, facing eviction due to executive retaliation. Requests hardship funds, independent investigation; acknowledgment by 12:00 PM 23 Dec 2025.	No response documented.	Pending	Ignored – no acknowledgment received.	Bruno Fernandes, Lebohang Mpumlwana (cc'd), W. Matthee
23 Dec 2025	Board of Directors	Final humanitarian notice: demands financial relief, independent investigation; acknowledgment by 12:00 PM; otherwise regulatory escalation to SAHRC/JSE/CMS/FSCA/B-BBEE/DEL.	No response. Matthee proceeds with all regulatory complaints as notified.	Complete	Ignored – Board failed to respond to humanitarian notice.	Board of Directors, Bruno Fernandes, Lebohang Mpumlwana, W. Matthee
23 Dec 2025	SAPS/NPA – Criminal Referral	Final notice: criminal referral for Medical Schemes Act (s66), OHSA (s26 & 8), B-BBEE Act (Reg 2.10). Deadline: 12:00 PM 24 Dec 2025.	No response documented.	Pending	Criminal justice process separate.	W. Matthee, SAPS, NPA
23 Dec 2025	Council for Medical Schemes (CMS)	Administrator misconduct, ethical failure, retaliation, Gexus/DMS integration gap generating false non-adherence reports to GEMS patients.	CMS acknowledges; requests complaint form and consent letter.	Pending	Not yet deflected at initial stage.	W. Matthee, Polite (CMS Complaints)
23 Dec 2025	SAHRC – Initial	Systemic governance failures, procedural obstruction, humanitarian crisis, right to dignity, housing, administrative justice.	No formal acknowledgement initially. Busisiwe Dlamini later responds requesting province.	Pending	Not yet deflected.	W. Matthee, Busisiwe Dlamini
23 Dec 2025	DEL – Initial	Unlawful salary deductions (>40%), gender discrimination, retaliation, constructive dismissal.	No immediate response documented.	Pending	Not yet deflected.	W. Matthee, DEL IES
23 Dec 2025	JSE – Initial	Board governance failure, P1 Material Risk Report ignored, retaliation via affidavit, King IV breaches.	Ncumisa Sinyanya acknowledges receipt same day.	Pending	Engaged – acknowledged.	Ncumisa Sinyanya (JSE Investigations), W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
26 Dec 2025	Employer – CCMA Objection	Employer objects to Con-Arb in WECT24486-25 under Rule 17(a) (delay tactic).	Matthee objects to delay; notes humanitarian crisis (2 months arrears, eviction, no food/medication); requests expedited arbitration.	Pending	Employer delay tactic – Rule 17(a) objection.	Zera Rankutu, Ronel Vorster, W. Matthee
26 Dec 2025	CCMA	Matthee submits evidence dossier; notifies CCMA of SAHRC/JSE/CMS/FSCA/B-BBEE/DEL escalations.	Dossier attached to case file.	Complete	Not applicable.	W. Matthee, Ronel Vorster
07 Jan 2026 14:28	Employer – HR	Request for UI-19 form and exit documents for UIF application.	Cheryl-Dawn Modern – no response (ignored).	Pending	Ignored initial request.	Cheryl-Dawn Modern, W. Matthee
09 Jan 2026 12:00	CCMA	Conciliation/Con-Arb hearings held for both cases. Certificates of Non-Resolution issued.	Commissioner Nthabiseng presides. Matthee later files bias complaint.	Complete	Conciliation failed – matters proceed to Labour Court.	Commissioner Nthabiseng, Vijay Mc (employer rep), W. Matthee
10 Jan 2026 02:11	CCMA – Bias Complaint	Formal bias complaint against Commissioner Nthabiseng: pre-judgment ('nothing here relates to protected disclosure'), 'Google it' remark, misdirection on jurisdiction.	Maggie Kuntu (12 Jan): escalated to region; outcome within 14 working days.	Complete	CCMA complaints process engaged.	Commissioner Nthabiseng, Maggie Kuntu, Retha Ludeke, W. Matthee
14 Jan 2026	Employer – HR	Follow-up on retirement claim and UIF forms.	Sipokazi Makaula (15 Jan) requests identity verification – info already known.	In progress	Delay tactic – requesting basic info already on file.	Sipokazi Makaula, W. Matthee
15 Jan 2026 20:43	Employer – HR/Leadership	Matthee rejects stalling; provides notice of UIF non-compliance (June 2025 gap); demands docs by 19 Jan 12:00.	Email to Tebogo.Makoe@ fails – 'Access denied'.	Partial failure	Email blocked – technical deflection.	Sipokazi Makaula, Tebogo Makoe, Lindiwe Miyambu, Monwabisi Kula, W. Matthee
18 Jan 2026	Employer – HR	Employer responds: UIF declared (screenshot), UI-19 attached, Certificate of Service attached. Makaula: UI-19 only if resignation qualifies.	Documents provided but Certificate disputed – role downgraded.	Complete	Documents provided but disputed for accuracy.	Sipokazi Makaula, Sebatatso Sebotsa, W. Matthee
19 Jan 2026 12:25	Employer – HR/Leadership	Matthee formally disputes Certificate of Service: 'Care Coordinator' vs 'Specialist: Care Manager' (NQF 8); refers to recorded 'Naming Convention' Teams meeting.	Cheryl-Dawn Modern (WRITTEN ADMISSION): Certificate correct; naming convention changes 'still in progress'; no changes implemented for Matthee's department.	Complete	EMPLOYER REFUSES CORRECTION – written admission of ongoing naming convention process.	Cheryl-Dawn Modern (WRITTEN ADMISSION), Nthabiseng Nkatane, Sipokazi Makaula, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
19 Jan 2026	Employer – HR	Matthee requests disclosure of recorded 'Naming Convention' Teams meeting as material evidence.	No response documented.	Pending	Ignored – employer withholds recording.	Cheryl-Dawn Modern, Nthabiseng Nkatane, Sipokazi Makaula, W. Matthee
20 Jan 2026	JSE – Update	Failed conciliation, employer blocking financial relief, weaponising litigation, deepening humanitarian crisis.	Investigations acknowledges receipt; will review and revert.	Pending	Engaged – acknowledged.	Nadia Jada (JSE), W. Matthee
28 Jan 2026	CCMA	Vusumzi Landu responds to bias complaint: denies bias; warns against recording; confirms CCMA lacks jurisdiction for protected disclosure/automatically unfair dismissal arbitration.	Landu closes complaint. Matthee accepts; commits to Labour Court within 90 days.	Complete	Passed to Labour Court – CCMA confirms lack of jurisdiction.	Vusumzi Landu (Provincial Senior Commissioner), Aziza Taliep, W. Matthee
04 Feb 2026	CMS – Follow-up	CMS declines jurisdiction – complaint involves health professionals, not schemes/administrators. Refers to HPCSA.	No formal finding of misconduct. File closed on jurisdiction.	Complete	Passed to HPCSA.	CMS Complaints Unit, W. Matthee
10 Feb 2026	SAHRC – Formal Assessment	Alleged victimisation, discrimination, occupational detriment.	Lwethu Yoli: SAHRC not best placed – refers to CCMA/Labour Court and Public Protector. Financial aspects → DEL.	Complete	Passed to CCMA/Labour Court, Public Protector, and DEL.	Lwethu Yoli (SAHRC), W. Matthee
10 Feb 2026	HPCSA & SANC – Initial	Professional misconduct against Mary-Ann Jones and Mapule Mashele (nurses).	HPCSA: 'No jurisdiction over nurses' – refers to SANC.	Pending	HPCSA passed to SANC. SANC ignored complaint.	LegalMed (HPCSA), W. Matthee
10 Feb 2026	DEL – UIF & BCEA	False UIF declaration (June 2025 gap), fraudulent Certificate of Service, suppression of OHSA duties.	No acknowledgement for 6 days.	Pending	Ignored until follow-up.	David Esau, Fezeka Ngalo, Sipokazi Makaula
11 Feb 2026	HPCSA – Second Complaint	Complaint against HPCSA-registered Medical Directors and Lisa Mari (pharmacist).	HPCSA: states Lisa Mari falls under SAPC. Email to info@hpcsa.co.za blocked by mail flow rule.	Complete	Passed to SAPC. Blocked email – institutional access barrier.	LegalMed, W. Matthee
16 Feb 2026	DEL – Follow-up	48-hour deadline expired; June 2025 UIF gap still 'No Information'; no case reference or inspector assigned.	Fezeka Ngalo responds same day: requests physical address, then allocates integrated inspection.	In progress	Engaged – Ngalo acted promptly.	Fezeka Ngalo, David Esau, Buziswa Ngqweleka, Bongwiwe Binase, Hlanganisa Dalasile
16 Feb 2026	Minister of Health / NDOH	Ministerial escalation re SANC's non-response.	Emsie Grundling acknowledges (17 Feb). Veronica Taschl requests full correspondence	In progress	NDOH actively requesting documents – engaged.	Minister Aaron Motsoaledi, Veronica Taschl, Emsie Grundling

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
			(18 Feb). Matthee provides attachments.			
16 Feb 2026	SAPC	Unprofessional conduct against Lisa Mari – dismissed system integration gap. Auto-ticket 5211-7743.	26 Mar 2026: SAPC asks to resend attachment. Emails to registrar and conduct department timed out.	Pending	Server unreachable / delayed response.	Lisa Mari, Isaac Nkanyane, Felicia Ngoveni, W. Matthee
16 Feb 2026	SANC	CMS→HPCSA→SANC referral chain; SANC failed to respond.	No response (6+ days silence). Ministerial escalation filed.	Pending	Ignored complaint.	W. Matthee, SANC Registrar, Minister of Health
16 Feb 2026	CCMA Ethics & Fraud Hotline	Follow-up on commissioner bias complaint.	Submission reviewed; referred to CCMA investigators. Ref: 350111. Minimum 21 days for feedback.	In progress	Properly referred – not a deflection.	Ethics & Fraud Hotline, CCMA investigators
19 Feb 2026	The Whistleblower House (TWBH)	Matthee submits request for whistleblower assistance.	Tsholofelo Mahlangu: referred to Marco van der Walt (Schroter Attorneys) for validity and scope assessment.	Pending	Not applicable – evaluation in progress.	Tsholofelo Mahlangu (TWBH), Marco van der Walt
23 Feb 2026	SAPS – Delft Police Station	Matthee attempts to open criminal case for statutory fraud (UIF Contributions Act, BCEA) against Medscheme. Presents full documentary evidence.	Station Commander refuses without reviewing evidence; states 'there is no case'; claims to decide prosecutorial merit; characterises request as 'attitude problem'.	Failed	UNLAWFUL REFUSAL – Station Commander usurped NPA function; refused to examine evidence; intimidated complainant.	Station Commander (Delft SAPS), W. Matthee
24 Feb 2026	SAPS – Provincial Commissioner (WC)	Formal complaint against Delft Station Commander: unlawful refusal, failure to examine evidence, usurpation of NPA function, intimidation.	Multiple email addresses failed. wc-provcomm@saps.gov.za successful.	In progress	Technical deflection – multiple invalid SAPS email addresses.	Provincial Commissioner (WC SAPS), W. Matthee
02 Mar 2026	Schroter Law / TWBH	Van der Walt provides preliminary legal opinion: Matthee does not qualify for PDA protection; constructive dismissal threshold not met.	Matthee provides detailed point-by-point rebuttal. TWBH eventually declines: 'does not meet eligibility criteria'.	Complete	TWBH declined assistance based on Schroter preliminary opinion.	Marco van der Walt, Tsholofelo Mahlangu, W. Matthee
04 Mar 2026	OCJ Court Online	Account activation for eRegistry.	Account activated; password reset confirmed.	Complete	Not applicable.	OCJ Court Online, W. Matthee
05 Mar 2026	Labour Court – OCJ Portal	Urgent application: BCEA s77A – unlawful salary deduction (40.47%); urgent interim relief sought.	Manual filing via Labour Court online portal.	Pending	Not yet deflected.	Farzaana Ismail, Tsakani Soundy, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
06 Mar 2026	JSE – Formal Assessment	Complaint re AfroCentric governance, King IV breaches, retaliation.	Jowdiene van Schalkwyk: JSE determines matters fall outside Listings Requirements – refers to CCMA/Labour Court/Equality Court.	Complete	Passed to CCMA/Labour Court/Equality Court – within JSE's legal mandate.	Jowdiene van Schalkwyk, Nadia Jada (Head: Investigations), W. Matthee
12 Mar 2026	OCJ Court Online	First BCEA case initiating document received (Ref: HCGs943758) against AfroCentric Health (RF) (Pty) Ltd.	Document received; pending approval.	Pending	Not applicable.	OCJ Court Online, Registrar's Office
13 Mar 2026	OCJ Court Online	Initiating Document rejected – confusing reason: 'good day you put date.'	Rejection notification.	Failed	Poorly explained rejection – access barrier to self-represented litigant.	OCJ Court Online, W. Matthee
13 Mar 2026	SAHRC – Formal File Update	Forensic payroll discrepancy, CCMA institutional bias, obstructed Labour Court filing, SAPS refusal, eviction imminent.	Awaiting feedback – no response documented.	Pending	No response to 13 Mar update.	W. Matthee, Busisiwe Dlamini, Lwethu Yoli
16 Mar 2026	DEL – Certificate of Service	Employer's Certificate misrepresents role as 'Care Coordinator' instead of 'Specialist: Care Manager' (NQF 8).	Matthew Holmes: Certificate matches UI declaration. DEL accepts employer's version.	Complete	DEL accepts employer's version without independent verification – passes to CCMA.	Matthew Holmes (Team Leader: BCEA), Bongiwe Binase, W. Matthee
17 Mar 2026	DEL – Salary Deduction	40.47% salary deduction without consent.	Matthew Holmes: DEL lacks authority under Section 70(b) – earnings above Minister's threshold. Suggests CCMA.	Complete	DEL cannot act – passed to CCMA.	Matthew Holmes, W. Matthee
17 Mar 2026	DEL – UIF Referral	UIF non-compliance at Medscheme.	Matthew Holmes: referred to UIF unit; Granville Van Wyk assigned as contact.	In progress	Passed internally – BCEA team to UIF unit.	Matthew Holmes, Granville Van Wyk, Thinabethu Mazibuko
17 Mar 2026	Board of Directors – Section 162 Notice	Formal service of Section 162 Director Delinquency Application. Respondents: B. Fernandes, N. Munisi, A. Le Roux, G. Van Wyk, LSM Mpumlwana. Urgent High Court proceedings Rule 6(12).	No response documented. Board reminded of SENS announcement obligation.	Pending	Ignored – no response. Now litigation respondents.	Bruno Fernandes, Nkateko Munisi, Alice le Roux, Gerald van Wyk, Lebohang Mpumlwana, W. Matthee
19 Mar 2026	SAPS – Delft Police Station	Criminal case registration following Brigadier Naidoo's intervention.	SMS: 'Case registered on 2026-03-19 at DELFT Station. Ref nr CAS 705/3/2026'.	Complete	Case registered after Brigadier Naidoo's intervention.	SAPS Delft, Brigadier Naidoo, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
20 Mar 2026	CMS – Follow-up	Uncorrected Gexus/DMS integration error – ongoing patient safety risk. High Court filing HCGS951842 referenced.	CMS auto-reply 2 Apr 2026: matter receiving attention.	Pending	Not yet deflected – awaiting substantive response.	W. Matthee, CMS Commissioner
23 Mar 2026	OCJ Court Online	Initiating Document approved and filed after multiple rejections. Case No: 2026-066952 (Section 162 Director Delinquency). Urgent Application scheduled for 25 Mar 2026.	Case filed; application scheduled; Practice Notes filed.	Complete	Not applicable.	OCJ Court Online, W. Matthee
25 Mar 2026 10:00 & 14:15	High Court – WC Division (Urgent Court 4)	Urgent Section 162 Director Delinquency Application – Matthee v Fernandes & Others, Case 2026-066952. Matthee self-represented; SC Graham for Respondents. Struck from roll. Unauthorised third party incident.	Judge Anderson presides. Scale C costs order granted against Matthee. Grounds for Rule 42 rescission identified.	Complete	Hearing held – rescission application and LPC complaint intended.	Judge Anderson, Senior Counsel Graham, W. Matthee (self-rep)
25 Mar 2026	SAPS – Delft/Woodstock	Case transfer confirmation.	SMS: 'DELFT ref nr CAS 705/3/2026 was transferred to WOODSTOCK station.'	Complete	Active criminal case – properly transferred.	SAPS Delft, SAPS Woodstock, W. Matthee
26 Mar 2026	High Court – Registrar's Office	Request for official audio recording and certified transcript for Rule 42 rescission application, Judicial Conduct Tribunal and LPC complaints. To Nicola Hanekom (Acting Chief Registrar) and Nosiselo Chwethiso.	No response from Hanekom or Chwethiso.	Pending	Ignored – no acknowledgment from Registrar's office.	Nicola Hanekom, Nosiselo Chwethiso, W. Matthee
26 Mar 2026	Inlexso – Transcription Service	Parallel request for audio recording and transcript.	Belinda Botes acknowledges; states 'I'll request the audio and revert.' Then goes on bereavement leave 31 Mar – 6 Apr.	In progress	Engaged – but no backup system when Botes goes on leave.	Belinda Botes, Tina Jorgenson, W. Matthee
01 Apr 2026	Director of Court Operations – R David	Formal complaint: Registrar's office non-response; Inlexso breakdown; no backup system; prejudice to self-represented litigant.	Awaiting response.	Pending	Not yet deflected.	R David (Director of Court Operations), W. Matthee
02 Apr 2026	OCJ Court Online	New BCEA case filed. Case No: 2026-077546. Matthee v Afrocentric Health (RF) (PTY) LTD.	Initiating Document approved and filed.	Complete	Not applicable.	OCJ Court Online, W. Matthee

Date / Time	Recipient / Body	Problem Identified	Response / Action	Status	Deflection / Pattern	Key Players
02 Apr 2026	CMS – Formal Follow-up	Gexus-DMS integration failure constitutes maladministration under Medical Schemes Act. Discovery Health precedent cited.	Auto-reply received; awaiting substantive response.	Pending	Not yet deflected.	CMS Commissioner, W. Matthee

TABLE 2: INTERNAL CHRONOLOGY — ISOLATED EMPLOYMENT EVENTS (Key Events)

This table isolates the internal employment chronology from the broader regulatory record. It traces the sequence of protected disclosures, employer responses, retaliatory conduct, and governance escalations that constituted the cause of action. Each entry includes the legal significance of the event for the LRA, PDA, EEA, and BCEA claims. This table is the primary reference for constructing the automatically unfair dismissal and protected disclosure retaliation narratives.

Date	Event	Response / Outcome	Legal Significance
11 Jan 2024	Recruitment Phase (Jan–Apr 2024): Matthee recruited and assessed for 'Specialist: Care Manager' role. Three interview invitations, assessment, background check completed.	Recruitment process complete; Matthee invited to proceed to offer.	Establishes legitimate expectation of Specialist role – foundation of B-BBEE fronting and title suppression argument.
02 Apr 2024	BAIT AND SWITCH: Offer made for 'Care Coordinator' role despite recruitment for 'Specialist'. Contract signed 9 Apr 2024 at grade B4M1, CTC R490,032 pa.	Matthee accepts; Nkatane confirms 2 May 2024 start date.	KEY DOCUMENT: Contract contradicts recruitment documentation. Core B-BBEE fronting evidence.
06 Mar 2025	FIRST DOCUMENTED THREAT: Jones threatens Matthee: 'this is the end of you'.	Matthee documents threat.	Establishes early hostile intent by Jones – contextualises all subsequent discrimination.
18 Mar 2025	First psychiatric admission: Akeso Stepping Stones (severe depression, PTSD). 3–4 weeks inpatient.	Dr Malan certifies medical condition.	Employer placed on constructive notice of disability from this point.
16 Apr 2025	Jones states: 'we do not apply staggering of money owed' – contradicts HCBP Policy.	Matthee given reduced-hours accommodation.	Employer's own statement contradicts policy – used to justify July 2025 unlawful deduction.
16 May 2025	Mental health disclosure: Dr Malan's letter (severe depression, PTSD) provided to Mapule Mashele.	Mashele receives disclosure; no immediate adverse action.	Employer placed on formal written notice of disability – held before July 2025 deduction.
23 Jul 2025	UNLAWFUL SALARY DEDUCTION: 40.47% (R14,811.77) without consultation while between admissions.	Employer invokes 'no work no pay'; manager denies staggering.	BCEA s34(2) violated. Employer held Dr Malan's letter. Bad faith established.
24 Jul 2025	Jones shares AOD policy showing 25% cap; acknowledges cap exists but defends 40.47% deduction.	Jones: 'This is for disability.' Matthee: what is illegal?	Critical admission: employer knew of statutory cap and violated it knowingly.
23 Sep 2025	GENDER IDENTITY DISCRIMINATION: Jones posts 'Wilma' in Teams channel with 'NO FILTERING' in red, immediately after Matthee proposed filtering strategy.	HR investigates. Matthee NOT removed from Jones's team.	EEA s6 violation. HR promises not fulfilled. Matthee left in hostile environment.
25 Sep 2025	Formal 11-page discrimination complaint: requests neutral investigator, suspension of accused, removal from team.	HR promises protection but does not act on removal request.	Protected activity under LRA s187(1)(f). Employer's failure to act = constructive complicity.
29 Sep 2025	RETALIATORY UNPAID LEAVE: Jones loads double punitive unpaid leave on exact same day Matthee files formal complaint.	Reversed by Mashele 1 Oct 2025.	Direct evidence of retaliation. Written proof of discretionary punitive conduct.

Date	Event	Response / Outcome	Legal Significance
01 Oct 2025	Investigation closed: 'Wilma' dismissed as 'typo'. Matthee not removed from Jones's reporting line.	Whitewash finding issued.	Institutional whitewash. Matthee left in hostile environment. May 2025 disclosure ignored.
23 Oct 2025	PROTECTED DISCLOSURE (Patient Safety): Gexus-DMS integration gap identified; Matthee refuses to contact vulnerable patient on clinically incorrect grounds.	Jones overrides clinical judgment; labels refusal 'insubordination'.	PDA-protected disclosure. Insubordination charge = retaliatory adverse action under PDA s3.
31 Oct 2025	RECORDED RETALIATORY ADMISSION: Jones: 'You made a case of harassment against me, so I can make a case of harassment against you.'	Matthee records interaction.	SMOKING GUN: Causal nexus between protected complaint and retaliatory intent. PDA s3 breach confirmed.
02 Nov 2025	Formal 3-page grievance against Jones: malicious intent, gaslighting, retaliation. 30+ days institutional silence begins.	No response documented.	Constructive dismissal ingredient. 30+ days silence = futility of internal remedies.
04 Dec 2025	Final executive escalation (32 attachments). Requests paid leave, financial settlement, written guarantee.	CRO: feedback only in January due to 'festive break'.	Executive-level delay during humanitarian crisis. CRO's 'festive break' response is a governance failure.
09 Dec 2025	Board escalation (38 attachments). Final humanitarian notice. Some emails bounce due to invalid addresses.	CRO Kula asks Matthee to stop emailing directors.	Gatekeeping by CRO = suppression of governance escalation. Board non-response = Section 162 grounds.
10 Dec 2025	Employer's Opposing Affidavit: depression as 'cynical excuse'; conduct as 'untruthful and sloppy'; seeks costs.	Affidavit served on CCMA and Matthee.	BAD FAITH LITIGATION: Personal attacks under oath. Grounds for striking out and costs application.
12 Dec 2025	RESIGNATION (Constructive Dismissal): employment terminated due to objectively intolerable conditions.	Resignation submitted.	Section 186(1)(e) LRA: objectively intolerable = constructive dismissal. PDA s7 protection applies.
22-23 Dec 2025	Final humanitarian notice to Board and Lead Independent Director (Bruno Fernandes). No response → regulatory escalation triggered.	No response. Matthee proceeds with all regulatory complaints.	Board's silence = final confirmation of institutional failure. Triggers regulatory chain.

TABLE 3: KEY PATTERN IDENTIFICATION

This table synthesises twelve structural governance and legal patterns identified across the full correspondence record. Each pattern represents an independent cause of action or evidentiary foundation for the active proceedings. The patterns are arranged in order of legal materiality, beginning with the foundational title suppression and progressing through the regulatory deflection carousel and judicial access barriers.

Pattern	Description	Key Evidence / Examples	Legal Significance
1. Bait-and-Switch / Title Suppression	Matthee recruited as 'Specialist: Care Manager' but contracted as 'Care Coordinator' (B4M1). Role title systematically suppressed across employment records, Certificate of Service, and UIF declarations.	Employment contract (Apr 2024); Cheryl-Dawn Modern written admission (19 Jan 2026); Interview invitation documentation (Jan–Apr 2024); Certificate of Service (Jan 2026)	B-BBEE fronting grounds (Commission Case 5/02/2026); EEA occupational detriment; BCEA Certificate of Service misrepresentation grounds.
2. Protected Disclosure Retaliation Sequence	Each formal complaint or protected disclosure was followed by a demonstrable retaliatory act, creating a documented causal chain.	Mar 2025 complaint → 'end of you' threat; Jul 2025 deduction after May 2025 disability disclosure; Sep 2025 complaint → same-day retaliatory leave; Oct 2025 patient safety disclosure → insubordination charge; Oct 2025 complaint → recorded retaliatory admission	PDA s3 breach established across multiple protected disclosures. LRA s187(1)(f) automatically unfair dismissal grounds.
3. Institutional Whitewash	Formal complaints were dismissed with procedurally inadequate findings, minimising serious conduct and permitting the hostile environment to continue.	'Wilma' dismissed as 'typo' (Oct 2025); May 2025 disclosure of Jones's conduct ignored in October investigation; Matthee left in Jones's team despite being granted protection	Bad faith in employer's internal processes; undermines any argument that internal remedies were available or adequate.
4. 30+ Days Institutional Silence	Formal grievance of 2 November 2025 received no response for over 30 days, constituting a structural failure of internal remedy.	02 Nov 2025 grievance → no response; 02 Nov salary deduction dispute → no response; 11 Nov escalation → only acknowledged without resolution	Constructive dismissal ingredient (LRA s186(1)(e)); demonstrates futility of internal remedies for purposes of urgent Labour Court relief.
5. Executive Gatekeeping	CRO Monwabisi Kula actively blocked Board-level escalation, requesting Matthee stop emailing directors and characterising governance escalation as 'impatience'.	17 Dec 2025: 'can I please ask you to stop sending these e-mails'; 18 Dec 2025: gatekeeping email repeated	King IV governance failure; suppression of protected escalation to oversight committees; evidence for Section 162(5)(c) delinquency application.
6. Regulatory 'Passed Buck' Carousel	Every regulatory body except NDOH referred Matthee to another forum, creating a systemic access-to-justice failure.	CMS→HPCSA; HPCSA→SANC; HPCSA→SAPC; JSE→CCMA/Labour Court; SAHRC→CCMA/Labour Court/PP/DEL; DEL (BCEA)→CCMA; DEL (salary)→no action	Systemic failure of regulatory oversight; supports Biowatch challenge to costs order; documents futility argument.
7. Technical Barrier Pattern	Invalid email addresses, full CCMA mailboxes, inaccessible SAPS channels, and failed deliveries systematically delayed or prevented engagement.	CCMA mailbox full (3 occasions Dec 2025); FSCA email invalid; JSE regulation@ blocked; HPCSA email blocked; SAPS multiple invalid addresses;	Constitutes systemic obstruction of access to justice for self-represented litigants; relevant to rescission application and access-to-justice argument under Constitution s34.

Pattern	Description	Key Evidence / Examples	Legal Significance
		Registrar email invalid; Inlexso no backup system	
8. Bad Faith Litigation	Employer's legal team deployed personal attacks in sworn affidavit rather than substantive legal opposition.	10 Dec 2025 Opposing Affidavit: 'cynical excuse'; 'untruthful character'; 'sloppiness'; 'fishing expedition'; 'abuse of system'; seeks costs	Relevant to costs applications; grounds for striking out; admissible as evidence of employer's retaliatory intent.
9. Document Misrepresentation (Certificate of Service)	Certificate of Service systematically downgraded Matthee's role from 'Specialist: Care Manager' (NQF 8) to 'Care Coordinator', contradicting appointment letter and Naming convention	Cheryl-Dawn Modern (19 Jan 2026): written admission that naming convention 'still in progress'; DEL (16 Mar 2026): accepted employer's version without verification	Core B-BBEE fronting allegation; BCEA Certificate misrepresentation; CCMA/Labour Court claim grounds.
10. UIF Non-Compliance	June 2025 UIF contributions deducted but not remitted or declared, creating a verifiable gap in uFiling records.	uFiling shows 'No Information' for June 2025; employer screenshot disputed; DEL UIF unit referral (Granville Van Wyk, 17 Mar 2026)	UIF Contributions Act criminal violation; active SAPS case CAS 705/3/2026.
11. Board Non-Response / Governance Collapse	Board failed to respond to multiple escalations including final humanitarian notice and is now a Respondent in delinquency proceedings.	22 Dec and 23 Dec 2025: humanitarian notices – no response; 14 Mar 2026 Rule 6 Notice – no response; 17 Mar 2026 Section 162 application – no response	Section 162(5)(c) delinquency grounds; SENS non-disclosure; wilful misconduct allegation; King IV Chapter 2 failure.
12. OCJ Portal Obstruction	Five submissions and four rejections of initiating documents, including vague and inconsistent rejection reasons, created material barriers to court access.	12–23 Mar 2026: rejections for 'good day you did put the date'; jurisdiction (Labour Court); annexures; urgency date	Access-to-justice failure (Constitution s34); relevant to Rule 42 rescission grounds; self-represented litigant prejudice.

TABLE 4: UPDATED AWAITING FEEDBACK REGISTRY

This table reflects the current status of all outstanding matters as at 03 April 2026. Urgency ratings are assigned as follows: **CRITICAL** = immediate action required within 48 hours (deadline-sensitive or rights-impairing); **HIGH** = action required within 7 days; **MEDIUM** = monitor and follow up within 14 days. The 'Recommended Next Step' column provides the specific procedural action required.

Regulator / Body	Last Action	Status	Urgency	Recommended Next Step
High Court (2026-066952) – Section 162	25 Mar 2026 – Scale C costs order; struck from roll	Awaiting audio/transcript for rescission	CRITICAL	File Rule 42 rescission; obtain Inlexso transcript; file LPC complaint re unauthorised third party
High Court (2026-077546) – BCEA Claim	02 Apr 2026 – BCEA case filed (WWWBCEAWC2026)	Awaiting hearing date	HIGH	Monitor OCJ portal; prepare particulars of claim; confirm Labour Court registry receipt
SAPS – Woodstock (CAS 705/3/2026)	25 Mar 2026 – case transferred; new case number pending	Awaiting new case number	HIGH	Follow up with Woodstock SAPS (021-4423100); confirm detective contact
Director of Court Operations – R David	01 Apr 2026 – formal complaint submitted	Awaiting response	HIGH	Escalate if no response by 7 Apr 2026 (Botes return date)
High Court Registrar (Hanekom/Chwethiso)	26 Mar 2026 – audio recording request	No response (ignored)	CRITICAL	Escalate via R David; consider PAIA s11 request; Rule 30A notice
Inlexso (transcription service)	02 Apr 2026 – will resubmit 7 Apr 2026	Awaiting High Court IT	HIGH	Confirm by Belinda Botes on 7 Apr; request written quote and turnaround time
DEL – UIF Unit (Granville Van Wyk)	17 Mar 2026 – referred internally by Holmes	Awaiting UIF assessment	HIGH	Follow up directly with Granville Van Wyk; provide uFiling June 2025 gap extract
SAHRC (Dlamini / Yoli)	13 Mar 2026 – forensic payroll update sent	Awaiting feedback	MEDIUM	Follow up; reference Labour Court proceedings and imminent eviction
CMS Commissioner	02 Apr 2026 – auto-reply only	Awaiting substantive response	HIGH	Escalate with HCGS951842 reference; request formal investigation under MSA s47
SAPC (Nkanyane / Ngoveni)	26 Mar 2026 – asked to resend attachment (Ref 5211-7743)	Awaiting further response	MEDIUM	Resend with read-receipt; note historical email timeout pattern
SANC Registrar	16 Feb 2026 – complaint filed	No response (ignored)	MEDIUM	Escalate to National Chief Nursing Officer and Provincial Director of Nursing
JSE (Jowdiene van Schalkwyk)	Post-6 Mar 2026 – JSE engaging company	Awaiting company response	HIGH	Monitor SENS announcements by AfroCentric; provide updated court filing details
B-BBEE Commission (Case 5/02/2026)	17 Mar 2026 – cc'd on Section 162 notice	Awaiting investigation progress	HIGH	Provide Cheryl-Dawn Modern admission (19 Jan 2026) and Certificate of Service as key exhibits

Regulator / Body	Last Action	Status	Urgency	Recommended Next Step
NDOH / Minister of Health	18 Feb 2026 – Taschl requested full correspondence	In progress (NDOH engaged)	MEDIUM	Provide updated SANC complaint status; send any new nursing regulatory correspondence
Board of Directors / Section 162 Respondents	17 Mar 2026 – Section 162 served; no response	Ignored – now litigation respondents	CRITICAL	Monitor SENS announcements; challenge Biowatch costs order; prepare for next court date
CCMA Investigators (Ref 350111)	16 Feb 2026 – 21-day window (expired ~9 Mar)	No feedback – likely closed	MEDIUM	Follow up with reference number; confirm whether investigation concluded by Landu

TABLE 5: CRITICAL DOCUMENTS REFERENCED IN CORRESPONDENCE

This table catalogues every key document referenced across the full correspondence record and assigns each to its legal purpose in the active proceedings. Documents marked URGENT require immediate action to prevent evidentiary loss or procedural prejudice. The table serves as the primary document registry for trial preparation, regulatory submissions, and the Rule 42 rescission application.

Document / Item	Relevance	Status / Location
Interview invitation documentation (Jan–Apr 2024)	Establishes recruitment for 'Specialist: Care Manager' role – foundational document for bait-and-switch / title suppression argument and B-BBEE fronting allegation.	Filed – Neo Seggoka correspondence; Nthabiseng Nkatane correspondence
Employment contract (09 Apr 2024)	Contract designates 'Care Coordinator' (grade B4M1) despite Specialist recruitment – core evidence of title suppression and potential B-BBEE fronting.	Filed – Barbara Johnson / W. Matthee signed contract
First documented threat: 'this is the end of you' (06 Mar 2025)	Establishes early hostile intent by Jones; contextualises subsequent discrimination and retaliation.	Filed – Matthee's contemporaneous documentation
Akeso Stepping Stones admission records (Mar–Apr 2025)	Confirms inpatient psychiatric treatment (severe depression, PTSD); establishes period of incapacity for no-work-no-pay challenge.	Filed – Dr Jacques Malan / Akeso records
Dr Jacques Malan letter (16 May 2025)	Confirms severe depression and PTSD; employer held this letter before July 2025 deduction – establishes bad faith and knowledge of disability.	Filed – KEY EXHIBIT for BCEA and LRA claims
Jones 'no staggering' statement (16 Apr 2025)	Jones's written position that company does not allow staggering – directly contradicts HCBP Policy and employer's later defence.	Filed – Meeting feedback documentation
HCBP Policy (employer's own policy)	Employer's own policy treats recovery as deduction subject to 25% cap and mandatory prior consultation – contradicts employer's position.	Filed – Contradicts employer's defence
AOD Policy (25% cap acknowledgement, 24 Jul 2025)	Jones shares policy confirming 25% cap; then defends 40.47% deduction – direct evidence of wilful non-compliance.	Filed – Critical: employer knew of cap
Payslip showing 40.47% deduction (Jul 2025)	Net pay R15,679.29 – confirms deduction exceeded BCEA s34(2) cap. Amount: R14,811.77.	Filed – KEY EXHIBIT for BCEA s77A claim
First Aider roster (25 Jul 2025)	Matthee drafts and implements management-level roster – direct contradiction of 'Care Coordinator' designation; evidences Specialist-level responsibility.	Filed – Management role evidence
'Wilma' Teams message (23 Sep 2025)	Gender identity discrimination incident – screenshot/system evidence required.	Filed – EEA s6 violation evidence
Formal discrimination complaint (25 Sep 2025)	11-page complaint with specific procedural requests – establishes PDA chain and employer's obligations.	Filed – Anchor document for retaliation chronology

Document / Item	Relevance	Status / Location
Retaliatory unpaid leave entry (29 Sep 2025)	System record: entry loaded on same day as formal complaint; reversed after escalation – written proof of discretionary punitive conduct.	Filed – Direct evidence of retaliation
Mashele investigation closure (01 Oct 2025)	Whitewash document: dismisses discrimination as 'typo'; Matthee not removed from Jones's team; May 2025 disclosure ignored.	Filed – Evidence of institutional whitewash
Gexus-DMS root cause analysis (23 Oct 2025)	Confirms systemic integration gap – not isolated glitch; affects all members transitioning between benefit categories.	Filed – Supports PDA 'general public interest' threshold
Recorded retaliatory admission (31 Oct 2025)	Jones: 'You made a case of harassment against me, so I can make a case of harassment against you.' Audio recording.	Filed – SMOKING GUN for PDA retaliation claim
Formal grievance (02 Nov 2025)	3-page grievance against Jones – no response = 30+ day institutional silence; establishes futility of internal remedies.	Filed – Constructive dismissal predicate
Executive escalation (04 Dec 2025)	32 attachments; CRO responded with 'festive break' delay – establishes exhaustion of internal remedies.	Filed – Exhaustion of internal remedies
Cheryl-Dawn Modern written admission (19 Jan 2026)	Written confirmation that naming convention changes 'still in progress' – supports B-BBEE fronting and Certificate of Service misrepresentation.	Filed – KEY EXHIBIT for B-BBEE Commission Case 5/02/2026
Employer's Opposing Affidavit (10 Dec 2025)	Personal attacks under oath: 'cynical excuse'; 'untruthful and sloppy'; seeks costs – bad faith litigation evidence.	Filed – Grounds for costs application and striking out
Resignation letter (11–12 Dec 2025)	Cites opposing affidavit as final intolerable act; constitutes constructive dismissal under LRA s186(1)(e).	Filed – LRA s187(1)(f) automatically unfair dismissal
CCMA Certificates of Non-Resolution (09 Jan 2026)	WECT23564-25 and WECT24486-25 – jurisdictional gateway to Labour Court proceedings within 90 days.	Filed – Jurisdictional gateway documents
uFiling extract showing June 2025 gap	Confirms UIF contributions deducted but not declared; 'No Information' for June 2025.	Filed – Active SAPS case CAS 705/3/2026
SMS confirmation CAS 705/3/2026 transfer (25 Mar 2026)	SAPS SMS confirming case transfer from Delft to Woodstock – active criminal investigation.	Filed – Criminal case confirmation
Audio recording of Delft Station Commander (23 Feb 2026)	Records unlawful refusal to open criminal case; Station Commander usurping NPA prosecutorial function.	Filed – Grounds for IPID complaint
High Court audio recording (Case 2026-066952 – 25 Mar 2026)	Official record required for Rule 42 rescission application and Judicial Conduct Tribunal complaint.	URGENT – Audio not yet obtained; Registrar non-responsive; Inlexso request pending
Director of Court Operations complaint (01 Apr 2026)	Documents Registrar non-response and Inlexso backup system failure – relevant to Rule 42 rescission application.	Filed – Supports access-to-justice argument

Document / Item	Relevance	Status / Location

CONCLUSION: STATUTORY AND CONSTITUTIONAL FAILURES – COMPREHENSIVE ANALYSIS

The following analysis addresses how the documented institutional failures — across the employer, regulatory bodies, and judicial administration — constitute violations of the Labour Relations Act, Protected Disclosures Act, Employment Equity Act, Basic Conditions of Employment Act, Companies Act, and the constitutional rights of the whistleblower as a self-represented litigant. These failures are not isolated incidents; they form a systemic pattern of institutional resistance to accountability that is itself a governance failure of the highest order.

1. Labour Relations Act (LRA), Act 66 of 1995

Applicable Sections: s185 (right not to be unfairly dismissed); s186(1)(e) (constructive dismissal); s187(1)(f) (automatically unfair dismissal – protected disclosure retaliation); s5 (freedom of association and protected activity)

Institutional Failure Analysis: The employer's conduct across the period May–December 2025 constitutes automatically unfair constructive dismissal. The documented sequence — disability disclosure (May) → unlawful deduction (July) → discrimination complaint (September) → patient safety disclosure (October) → recorded retaliatory statement (October) → institutional silence (November) → opposing affidavit attacks (December) — establishes the causal chain required under s187(1)(f). The employer's failure to apply the CCMA's outcome, remove Matthee from the hostile reporting line, or address the 30+ day institutional silence demonstrates that the employer's conduct was calculated to make continued employment intolerable. The CRO's gatekeeping communications (17–18 December 2025) evidence active suppression of the governance escalation.

2. Protected Disclosures Act (PDA), Act 26 of 2000 (as amended by Act 5 of 2017)

Applicable Sections: s1 (definition of protected disclosure); s3 (protection against occupational detriment); s6 (protected disclosure to employer); s7 (protected disclosure to external body)

Institutional Failure Analysis: Matthee made at least two disclosures that qualify as protected under the PDA: the Gexus-DMS system integration gap (patient safety, 23 October 2025) and the systemic UIF non-compliance and B-BBEE fronting (disclosed through formal grievances and regulatory complaints). The immediate response — insubordination charge, exclusion from the resolution process, and Jones's recorded statement ("You made a case of harassment against me, so I can make a case of harassment against you") — constitutes occupational detriment under s1 of the Act. The Schroter Law preliminary opinion that the threshold for PDA protection was not met has been substantively rebutted; the system integration disclosure satisfies the 'general public interest' threshold in s1(vii) and the employer's institutional response satisfies the 'occupational detriment' definition. The employer's failure to investigate protected disclosures, the whitewash investigation outcome, and the opposing affidavit's personal attacks further constitute detriment under the Act.

3. Employment Equity Act (EEA), Act 55 of 1998

Applicable Sections: s6(1) (prohibition of unfair discrimination); s6(3) (harassment as unfair discrimination); s11 (burden of proof); s10 (obligation to eliminate unfair discrimination)

Institutional Failure Analysis: The 'Wilma' incident (23 September 2025), Jones's documented pattern of hostile conduct from March 2025, and the employer's whitewash investigation (1 October 2025) constitute unfair discrimination on the grounds of gender identity and sexual orientation under s6(1). The investigation's failure to remove Matthee from the hostile reporting line after a formal complaint — despite HR's promise that he would not be 'required to meet with the manager' — constitutes a failure to take all reasonable steps to prevent harassment under s60. The title suppression (recruited as Specialist, contracted as Coordinator) may also constitute discrimination in the terms and conditions of employment. Under s11, the burden shifts to the employer to show that the discrimination was fair; given the documented conduct, no such justification is available.

4. Basic Conditions of Employment Act (BCEA), Act 75 of 1997

Applicable Sections: s34 (deductions from remuneration); s34(2) (25% cap on deductions); s35 (employer duties re deductions); s77A (civil claim for statutory breach)

Institutional Failure Analysis: The July 2025 salary deduction of 40.47% (R14,811.77) exceeded the statutory 25% cap in s34(2) without consultation, without written consent, and in full knowledge of Matthee's disability. Jones's contemporaneous acknowledgment of the 25% cap (24 July 2025: 'monthly deductions must not be more than 25%') while

defending the deduction ('This is for disability') constitutes wilful non-compliance. DEL's determination that it lacks jurisdiction under s70(b) (earnings threshold) does not extinguish the civil claim under s77A of the BCEA, which has now been filed as Case No: 2026-077546 in the Western Cape High Court. The Certificate of Service misrepresentation — downgrading role from Specialist to Coordinator — constitutes a further s34A violation.

5. Constitution of the Republic of South Africa, Act 108 of 1996

Applicable Sections: s9 (equality and non-discrimination); s10 (human dignity); s14 (privacy); s23 (labour rights); s34 (access to courts); s195 (public administration values – applicable to regulatory bodies)

Institutional Failure Analysis: The systemic failure of regulatory bodies to provide effective remedy — the 'passed buck' carousel across CMS, HPCSA, SANC, SAPC, JSE, SAHRC, and DEL — constitutes a failure of the constitutional obligation to ensure that rights in the Bill of Rights are not infringed and can be enforced (s7(2)). Matthee's right to access courts (s34) was directly impaired by: the CCMA's repeated mailbox full failures; the OCJ portal's multiple procedurally vague rejections; the Registrar's failure to provide the court recording; and the Delft Station Commander's unlawful refusal to open a criminal case. His right to human dignity (s10) was violated by the opposing affidavit's characterisation of his diagnosed mental illness as a 'cynical excuse'. The employer's failure to reasonably accommodate his disability implicates s9(3). The Biowatch principle (Biowatch Trust v Registrar, Genetic Resources 2009 (6) SA 232 (CC)) provides the constitutional basis for challenging the Scale C costs order: where a private litigant litigates to enforce constitutional rights against a private party that has suppressed public-interest protected disclosures, a punitive costs order is constitutionally disproportionate.

6. Companies Act (No. 71 of 2008) – Section 162

Applicable Sections: s162(5)(c) (delinquency for gross negligence, wilful misconduct, breach of fiduciary duty); s76 (directors' standard of conduct); s77 (liability for breach); King IV Report on Corporate Governance

Institutional Failure Analysis: The Board of Directors' failure to respond to Matthee's formal governance escalations — including the Priority 1 Material Risk Report delivered 9 December 2025 with 38 attachments, the subsequent humanitarian notices of 22–23 December 2025, the Rule 6 Notice of 14 March 2026, and the formal Section 162 application notice of 17 March 2026 — constitutes breach of fiduciary duty and gross negligence under s76 and s162(5)(c). The Board's failure to disclose material litigation (the Section 162 delinquency application and the B-BBEE Commission investigation with R580m exposure) to the market via SENS constitutes a separate wilful misconduct allegation under the Companies Act and JSE Listings Requirements. The CRO's gatekeeping communications and the employer's bad faith affidavit suggest that the Board's non-response was deliberate rather than inadvertent.

OVERALL SYSTEMIC CONCLUSION

The pattern documented across these tables reveals that Wilbur Matthee faced not a single institutional failure but a cascading, interlocking series of structural obstructions. At the internal level, the employer deployed the full arsenal of corporate deflection: whitewash investigations, institutional silence, gatekeeping, retaliatory conduct, document misrepresentation, and bad faith litigation. At the regulatory level, every external body except NDOH deflected to another forum, creating an access-to-justice vacuum. At the judicial administration level, OCJ portal rejections, Registrar silence, and the Inlexso backup system failure compounded the prejudice to a self-represented litigant navigating unprecedented governance terrain without legal aid.

The whistleblower protection framework of the PDA exists precisely for cases such as this: where a person with direct clinical and governance knowledge identifies a material risk, attempts to escalate it through every available channel, and is systematically punished for doing so. The documented causal chain — disclosure → detriment → institutional silence → regulatory carousel → judicial obstruction — constitutes a case study in the structural vulnerabilities that the PDA, LRA, EEA, and Constitution were designed to address.

The active SAPS criminal investigation (CAS 705/3/2026), the pending Labour Court BCEA claim (Case 2026-077546), the B-BBEE Commission investigation (Case 5/02/2026), the intended Rule 42 rescission application in High Court Case 2026-066952, and the ongoing JSE SENS disclosure review represent the remaining institutional pathways through which the record documented in these tables may achieve its intended purpose: accountability, remedy, and systemic correction.